

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

USL AUTO EXPORTING INC., *Complainant*

v.

EASY SHIPPING CORPORATION, *Respondent*.

DOCKET NO. 23-13

Served: May 24, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER TO SHOW CAUSE AND DENYING MOTION TO COMPEL WITHOUT PREJUDICE

On May 7, 2024, Complainant USL Auto Exporting, Inc. filed a motion to compel Respondent Easy Shipping Corporation to respond to its discovery requests. The motion does not clearly demonstrate what discovery Easy Shipping has failed to produce:

On April 1st, 2024, the Complainant issued formal Discovery Requests, including Document Production and Interrogatories, to the Respondent. An agreement was made for these documents to be returned by April 19th to expedite the process. However, the Respondent did not meet this agreed deadline.

Subsequently, on April 22nd, 2024, I followed up via email, emphasizing the necessity of returning the requested documents within the standard 30-day legal period. To date, the Respondent has failed to provide the requested documentation.

Complainant's Mot. to Compel Discovery, p. 2. It is not clear from the statements regarding "these documents" and "the requested documents" whether Easy Shipping has failed to respond to the interrogatories and document requests, or just the document requests. This is the type of confusion that the Initial Order seeks to avoid by requiring motions to compel to include the specific requests at issue – USL Auto's motion does not comply with this requirement. The Commission's rules also require motions to compel to include a copy of the discovery requests that have not been answered, along with the certificate of service that accompanied the request. 46 C.F.R. § 502.150(a)(2). USL Auto's motion did not include these documents, and so does not comply with the rule. Since the motion does not comply with the rule or with the Initial Order, it is **DENIED WITHOUT PREJUDICE** – meaning USL Auto may refile the motion with the missing information.

But Easy Shipping's apparent failure to participate in discovery is concerning. The Rules provide for a decision on default when a party fails to defend a proceeding:

(a) A party to a proceeding may be deemed in default if that party fails:

- (1) To appear, in person or through a representative, at a hearing or conference of which that party has been notified;
- (2) To answer, to respond to a dispositive motion within the time provided, or otherwise to defend the proceeding; or
- (3) To cure a deficient filing within the time specified by the Commission or the presiding officer.

46 C.F.R. § 502.65. It has become apparent that Easy Shipping's failure to respond to USL Auto's discovery requests, or to even respond to the motion to compel, is part of a pattern of failure to defend the proceeding.

On January 29, 2024, after Easy Shipping failed to file an opposition to USL Auto's January 5, 2024 motion for summary judgment by the deadline of January 22, 2024, I ordered Easy Shipping to file its opposition no later than February 6, 2024. In that order, I warned Easy Shipping that its "failure to abide by these deadlines may result in entry of default judgment against Easy Shipping." Easy Shipping did not file its opposition to the motion for summary judgment with the Office of the Secretary by February 6, 2024, but because it emailed a courtesy copy of the opposition to the Office of Administrative Law Judges – on February 7, 2024 – I denied USL Auto's motion for default. See Memorandum Order Denying Complainant's Motion for Default Judgment (Mar. 18, 2024).

On March 13, 2024, I held a status conference where I advised both parties of the need to familiarize themselves with the Commission's rules and the initial order. At that conference, I advised the parties again that "any further failure to comply with Commission rules or my orders may result in adverse inferences, default, or dismissal." See Memorandum Order Denying Complainant's Motion for Default Judgment (Mar. 18, 2024).

Following this warning, on March 25, 2024, USL Auto filed a renewed motion for summary judgment to which Easy Shipping has not responded. Easy Shipping's continued failure to timely respond to motions, including dispositive motions, constitutes grounds to find it in default.

For the reasons stated above, it is hereby **ORDERED** that by **June 6, 2024**, Easy Shipping show cause why default judgment should not be entered against it. Easy Shipping's failure to timely respond to this order to show cause may result in entry of default against it.

ALEX
CHINTELLA

Digitally signed by
ALEX CHINTELLA
Date: 2024.05.24
09:59:33 -04'00'

Alex M. Chintella
Administrative Law Judge